

(Authority - Railway Board's letter No. E(D&A) 2014 GS1-4 dated 12.01.2015)—acs no.124

4. Employment of near relatives of railway servants in Company or firm enjoying Government patronage. —(1) No railway servant shall use his position or influence directly or indirectly to secure employment for any member of his family in any company or firm;

(2) (i) No Group A Officer shall, except with the prior sanction of the Government permit his son, daughter or other dependent to accept employment in any company or firm with which he has official dealings or in any other company or firm having official dealings with the Government:

Provided that where the acceptance of the employment cannot await prior permission of the Government or is otherwise considered urgent, the employment may be accepted provisionally subject to the permission of the Government and the fact of such acceptance shall at once be reported to the Government.

(ii) A railway servant shall, as soon as he becomes aware of the acceptance by a member of his family of an employment in any company or firm, intimate such acceptance to the Government and shall also intimate whether he has or has had any official dealings with that company or firm:

Provided that no such intimation shall be necessary in the case of a Group 'A' Officer if he has already obtained the sanction of, or sent a report to the Government under clause(i).

(2) No railway servant shall in the discharge of his official duties deal with any matter or give or sanction any contract to any company or firm or any other person, if any member of his family is employed in that company or firm or under that person or if he or any member of his family is interested in such matter or contract in any other manner and the railway servant shall refer every such matter or contract to his superior officer or authority and the matter or contract shall thereafter be disposed of according to the instructions of such officer or authority.

5. Taking part in politics and elections. —(1) No railway servant shall be a member of, or be otherwise associated with, any political party or any organization which takes part in politics nor shall he take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.

(2) It shall be the duty of every railway servant to endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner any movement or activity which is, or tends directly or indirectly to be subversive of the Government as by law established and where a railway servant is unable to prevent a member of his family from taking part in, or subscribing in aid of or assisting in any other manner, any such movement or activity, he shall make a report to that effect to the Government.

(3) If any question arises whether a party is a political party or whether any organisation takes part in politics or whether any movement or activity falls within the scope of sub-rule (2) the decision of the Government thereon shall be final.

(3) No railway servant shall canvass, otherwise interfere with, or use his influence in connection with or take part in, an election to any legislature or local authority.

Provided that —

- (i) a railway servant qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;
- (ii) a railway servant shall not be deemed to have contravened the provisions of this sub-rule by reason only that he assists in the conduct of an election in the performance of a duty imposed on him by or under any law for the time being in force.

Explanation. – The display by a railway servant on his person, vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-rule.

Railway Ministry's decision. – (1) Railway servants wishing to join the Bharat Sevak Samaj should obtain prior permission from the Head of the Department. This permission will not, however, absolve them from the observance, at all times, of the rules and instructions relating to the conduct and behaviour of the Railway servant.

(E (D & A) 64 GS1 dot. 27-05-1964.)

Railway Ministry's decision. – (2) The Railway servants should not only be impartial but they should appear to be impartial in relation to the elections. They should not take part in any election campaign nor should they canvass. They should always take scrupulous care not to lend their names, official position of authority to assist one group as against another. Any disregard of these instructions will be considered as serious act of indiscipline. Their attention is drawn to the provisions in section 134 – A of the Representation of the People Act, 1951 which reads as under:

If any person in the service of the Government, acts as an election agent or a polling agent or a counting agent of a candidate at an election he shall be punishable with imprisonment for a term which may extend upto 3 months or with fine or with both.

(E (D & A) 66 GS1-15 dt. 27-12-66)

Railway Ministry's decision. —(3) Political neutrality of Railway servants—It is essential that Railway servants should not only maintain political neutrality but should also appear to do so and they should not participate in the activities of, or associate themselves with any organization in respect of which there is the slightest reason to think that the organization has a political aspect or with organisations banned by the Government.

(E (D & A) 69 GS1-25 dt. 31-1-1970).

(NS Policy/19 dt. 11-3-1976).

6. Joining of Associations or Unions by Railway Servants. – No railway servants shall join, or continue to be a member of an association or union the objects or activities of which are prejudicial to the interests of the sovereignty and integrity of India or public order or morality.

Note. – It is not permissible for a gazetted railway servant to join any association of non-gazetted railway servant like a Railway Employees Union,. When a non-gazetted railway servant who is a member of a Railway Employees' Union is promoted to gazetted rank, either in an officiating or permanent capacity he shall resign his membership of such Union. If, however, the officer concerned satisfies the General Manager of the railway concerned that by such resignation he will lose financially or otherwise under any beneficent scheme organized by such Union such